

Mithu @ Mithulal v. Managing Director, Madhyanchal Vidyut Vitran Nigam Ltd. and others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 14.8.2024 · 2024:AHC-LKO:56269-DB · WRIT - C No. 7018 of 2024 · **Writ disposed; petitioner directed to apply to SDO under paragraph 6.5**

HEADNOTE

A dispute over an electricity bill, including how arrears of a joint household connection should be shared after the consumer's mother died, is not decided in the writ. On the licensee's submission, the petition is disposed of by directing the consumer to apply within two weeks, after completing formalities, to respondent no. 3 (the Sub-Divisional Officer) under paragraph 6.5 of the Electricity Supply Code, and by directing that officer to hear all concerned and pass an appropriate order within six weeks.

FACTUAL SUMMARY

Mithu @ Mithulal lived with his mother and brother in one household on a single electricity connection of Madhyanchal Vidyut Vitran Nigam Limited. His mother used the connection until her death on 18 June 2021. The licensee thereafter raised the bill against him alone. On 18 April 2024 he applied to respondent nos. 1 and 2, asking that his brother pay half the outstanding amount up to 18 June 2021 and the whole amount thereafter. That application was still pending when he filed this writ.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

billing dispute directed to SDO under paragraph 6.5

HOLDING

A billing dispute, here over sharing arrears of a joint household connection after the consumer's mother died, is to be raised by an application to the Sub-Divisional Officer under paragraph 6.5 of the Electricity Supply Code. The writ was disposed of with a direction that the petitioner approach respondent no. 3 with an appropriate application, after completing all formalities, within two weeks, and that, if the application is made, respondent no. 3 hear all concerned and pass an appropriate order within six weeks. ¶ 3-4

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ asking that the pending billing complaint be decided, and that field officers be proceeded against, was disposed of by sending the petitioner to respondent no. 3 under paragraph 6.5, with a two-week limit to apply and six weeks thereafter to hear all concerned and pass an order. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S BROTHER MUST PAY HALF THE DUES UP TO 18 JUNE 2021 AND ALL DUES THEREAFTER, AND WHETHER THE BILL RAISED AGAINST THE PETITIONER ALONE IS ILLEGAL.

Left to respondent no. 3 on a paragraph 6.5 application after hearing all concerned. ¶ 4

NOT DECIDED — THE COMPLAINT DATED 18 APRIL 2024 PENDING BEFORE RESPONDENT NOS. 1 AND 2, AND THE PRAYER FOR ACTION AGAINST RESPONDENT NOS. 3 TO 5.

The Court directed a fresh application to respondent no. 3 and did not decide either prayer on the merits. ¶ 4

